

P. Anasuya, vs C. Obul Reddy on 25 August, 2020

Bench: U.Durga Prasad Rao, Kongara Vijaya Lakshmi

IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

TUESDAY, THE TWENTY FIFTH DAY OF AUGUST, TWO THOUSAND AND TWENTY
» PRESENT:

THE HONOURABLE SRI JUSTICE U. DURGA PRASD RAO Zi
AND f
THE HONOURBLE SMT JUSTICE KONGARA VIJAYA LAKSHMI

\.A.No. 2 of 2020 Ne

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CMA.No. 167 of 2020 * Se oo aor ae
Between:- ace

p, Anasuya, W/o. C. Obul Reddy, D/o. P. Chenna Reddy. . Petitioner
(Appellant in CMA.No.167/2029

on the file of the High Court)
AND

C. Obul Reddy, S/o. C. Raja Reddy, Business, D.No. 14-2,
Mothilal Aswal Franchise, CTM Road, Madanapalle, Chittoor District -517 325.
_.Respondent

| (Respondent in -do-)

COUNSEL FOR PETITIONER - Sri Mahadeva Kanthrigala
COUNSEL FOR RESPONDENT

Petition under Section 151 of CPC praying that in the circumstances
stated in the affidavit filed herein, the High Court may be pleased to stay the
order and decree dated 04.03.2020 in H.M.O.P.No. 124 of 2017 on the file of
the Principal Senior Civil Judge, Madnapalle, Chittoor District, pending disposal
of CMA.No. 167 of 2020 on the file of the High Court.

The Court while directing issue of notice to the Respondent herein to
show cause as to why this petition should not be complied with, made the
following order. (The receipt of this order will be deemed to be the receipt of
notice in the case).

ORDER:

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"Heard learned counsel for petitioner, Sri Mahadeva Kantrigala. The main plank of argument of learned counsel for petitioner is that the trial court granted dissolution of marriage under Section 13 of Hindu Marriage Act on the main ground that the appellant has not looked after their children. He would contend that even this allegation is true, it will not amount to cruelty towards the respondent/husband and that the | respondent, after the decree granted by the trial court, making attempts to have second marriage, in which case the appeal will become infructuous. He thus, sought for stay of operation of the order of the trial court. The contention raised by the learned | . counsel needs a detailed hearing. However, having found, prima facie, force in the submission of learned counsel for petitioner, there shall be stay of operation of the order and decretal order in H.M.O.P.No.124 of 2017 passed by the learned Principal Senior Civil Judge, M : «tet eight weeks." ge, Madanapalle, Chittoor District, for a period of Kc. TAT QO spi- i: yAl o.

ASSISTANT C STR R : Re // TRUE COPY // , / for ASSISTANT REGISTRAR
Contd..2..., To

- 1.The Principal Senior Civil Judge, Madanapalle, Chittoor District.
- 2.C. Obul Reddy, S/o. C. Raja Reddy, Business, D.No. 14-2, Mothilal Aswal Franchise, CTM Road, Madanapalle, Chittoor District -517 325. (Addressee No. 2 by RPAD)
- 3.One CC to Sri Mahadeva Kanthrigala, Advocate(OPUC)
4. spare copy.

TKK cette 8 me HIGH COURT UDPR.J & KVL.J DATED: 25-08-2020 ORDER IN INTERIM STAY & AND \ o r D oO' Ce QeciAL cays

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